

Montana-Specific Training Supplement

Required by ARM 42.13.906(3)(a). Standalone document mapping the universal alcohol-server content to Montana law. Provider: Practical AI Solutions LLC dba CertReady. Submission date: 2026-05-08.

1. Statutory framework: who must train, when, and why

Under MCA 16-4-1005, every licensee must ensure each employee authorized to sell, serve, or deliver alcohol, and each immediate supervisor, completes a state-approved RASS course within 60 days of hire and every 3 years thereafter. Each licensee maintains employment records verifying completion.

Under MCA 16-4-1006 (as amended by HB 157 and HB 196 in 2025), DOR must certify two distinct training tracks effective January 1, 2026:

- **(2)(a) On-premises:** ≥2 hours
- **(2)(b) Off-premises:** ≥1 hour ("at least half" the on-premises time)

The curriculum content checklist in MCA 16-4-1006(1) requires:

- (a) Effects of alcohol on the human body
- (b) Information on criminal, civil, and administrative penalties tied to MCA 27-1-710 (dram shop) and Title 16
- (c) Procedures for checking identification, **including government-certified digital identification cards** (HB 196 add)
- (d) Procedures for gathering documentation that may affect licensee liability
- (e) Skills training for handling difficult situations and evaluating intoxicated persons
- (f) A final test
- (g) A certificate of completion

ARM 42.13.907(1) adds substantive content rules: effects of alcohol incl. behavioral cues and absorption rates; standard drink sizes; methods to identify underage or intoxicated; strategies underage persons use; acceptable forms of ID (with graphic of each per ARM 42.13.902); actions to prevent incidents; documentation incl. incident log + house policies; techniques for denying sales.

Penalty for licensee non-compliance with the training mandate (MCA 16-4-1008(1)): \$50 / \$200 / \$350 in any 3-year period.

2. Acceptable forms of identification (ARM 42.13.902)

Listed in Module 04 of both tracks, with a graphic of each. The closed list:

- Current state-issued or Canadian driver's license or ID card
- Current armed-services ID card
- Valid US passport or US passport card
- Valid Montana temporary driver's license or temporary ID
- Valid Montana probationary driver's license
- Valid Montana tribal ID (issued by a federally recognized tribe in Montana)
- Government-certified digital identification card (added by HB 196, eff. October 1, 2025)

Falsifying or fraudulently using a digital ID is a separate offense under MCA 16-6-305 (HB 196 amendment).

Presumption of legal age: MCA 16-3-301 - a licensee or employee who relies in good faith on a presented form of ID listed above has a defense to a sale-to-minor charge.

3. Sale-to-minor framework

MCA 16-6-305(1) (general rule): unlawful to sell, give, or otherwise provide alcoholic beverages to a person under 21, except for the narrow statutory carve-outs in subsection (1)(a).

MCA 16-6-305(1)(a) (statutory exceptions): provision in a **nonintoxicating quantity** to a person under 21 by (i) the person's parent or legal guardian, (ii) a physician or dentist for medicinal purposes, (iii) a licensed pharmacist upon the prescription of a physician, or (iv) an ordained minister or priest in connection with a religious observance. **MCA 16-6-305(1)(c)** defines "intoxicating quantity" as a quantity sufficient to produce a BAC above 0.05 or substantial/visible mental or physical impairment. The exception never permits intoxication, over-service, or unlimited quantity.

MCA 16-3-301(6) (placard): the licensee must display a placard at the point of sale stating that selling to minors is prohibited.

Personal criminal penalty for the seller (MCA 16-6-305): up to \$500 fine, up to 6 months in jail, or both.

Licensee penalty schedule (ARM 42.13.101) - per offense in any 3-year period:

- 1st: \$250 fine
- 2nd: \$1,000 fine
- 3rd: \$1,500 fine + up to 20-day license suspension
- 4th: license revocation

4. Dram shop and the three liability types

MCA 27-1-710 is the EXCLUSIVE civil remedy for harm arising out of alcohol service in Montana. A licensee or its employee is not liable for injury caused by an intoxicated person except when one of three triggers applies:

1. Sale to a person under 21 AND the server did not make a reasonable attempt to determine age
2. Sale or service to a visibly intoxicated person AND the server knew or should have known
3. Forced or coerced consumption, or fraud about alcohol content

Damage caps:

- \$250,000 noneconomic damages per event (MCA 27-1-710(10))
- \$250,000 punitive damages per event (MCA 27-1-710(11))
- Economic damages NOT capped

Procedure:

- Plaintiff must serve certified-mail notice within 180 days of the sale or service; missing the 180-day window forfeits the dram-shop claim
- 2-year statute of limitations from the date of the sale or service to commence the civil action

Evidentiary bar (MCA 27-1-710(6)): jury may not consider the customer's post-service BAC, post-service signs of intoxication, post-service conduct, or the existence of happy hours or specials when determining whether the customer was visibly intoxicated AT THE TIME of service. The test is what the server saw and reasonably inferred at the moment.

The three liability types:

- **Criminal** - state charges (e.g., MCA 16-6-305 misdemeanor)
- **Civil** - dram shop suit under MCA 27-1-710
- **Administrative** - CARD action against the license (ARM 42.13.101)

One incident can trigger all three.

5. Hours of sale and promotion rules

MCA 16-3-304: All licensed retail establishments closed for sale of alcoholic beverages 2:00 a.m. - 8:00 a.m. daily. Local ordinances may impose stricter hours; follow whichever rule applies.

During closed hours, only licensee employees may remain on premises.

Sunday on-premise sales follow the standard 8 a.m. - 2 a.m. window (no Sunday ban for licensed retail).

Beer and table wine at grocery / c-stores (where "table wine" is wine containing **less than 16% ABV**): 8 a.m. - 2 a.m. seven days a week.

Agency liquor stores (state-contracted spirit retailers) per MCA 16-2-104: 8 a.m. - 2 a.m. with required minimum hours Tuesday-Saturday; Sunday/Monday/holidays optional.

Restaurant beer/wine licenses have separate food-service-hour limits that may be stricter than the general 8 a.m.–2 a.m. window. Follow the rule that applies to the specific license type and any local ordinance.

Promotions/happy hour:

- Licensee may NOT sell alcoholic beverages below the posted price (no BOGO where the second drink is effectively \$0; no "free shot")
- Promotions must comply with the posted-price rule, advertising rules, and any DOR/CARD requirements; do not run BOGOs, free-drink campaigns, or alcohol-included promotions unless the licensee has confirmed the promotion is lawful and obtained any required approval
- No statutory definition of "happy hour"

6. Montana license categories

- All-beverage license (full liquor on-premise)
- Beer/wine license (on or off)
- Restaurant beer-and-wine
- Off-premise beer/wine (grocery, c-store)
- Manufacturer (brewery, winery, distillery sample-room)
- Catering endorsement (extends service hours and locations for special events with prior DOR notice)
- Special permit (16-4-301) for community/charity events. RASS training is NOT required for special-permit holders.

Server age (MCA 39-2-306): minimum age 18 to serve alcohol in an open container on-premise. No minimum age (subject to FLSA) to ring up sealed-container off-premise sales.

7. Montana DUI framework

MCA 61-8-1002 per-se BAC limits:

- 0.08 noncommercial drivers age 21+
- 0.04 commercial drivers (CDL holders)
- 0.02 drivers under 21 (zero-tolerance)

- 5 ng/mL Delta-9 THC in blood

Aggravated DUI: BAC ≥ 0.16 OR refusal-with-prior (DUI in past 10 years).

Implied consent (MCA 61-8-1016): refusal of chemical test triggers automatic license suspension separate from DUI itself. 6-month suspension on first refusal; 1-year on second within 5 years. Refusal admissible in court as consciousness of guilt.

Penalty escalation (MCA 61-8-1007):

- 1st: 24 hours to 6 months jail; \$600-\$1,000 fine; 6-month suspension; mandatory ACT (Assessment, Course, Treatment) program. Enhanced to 48 hours to 1 year jail and \$1,200-\$2,000 fine if a passenger under 16 was in the vehicle.
- 2nd: 7 days - 1 year jail; \$1,200-\$2,000 fine; 6-month suspension; ignition interlock device
- 3rd: 30 days - 1 year jail; \$2,500-\$5,000 fine; 1-year suspension
- 4th: FELONY. No statutory time limit on counting prior convictions (all prior DUI convictions count; no clean-slate period). 13 months to 2 years custody plus a consecutive 5-year prison term, or up to 5 years in a treatment-court program; \$5,000-\$10,000 fine. (MCA 61-8-1008, operative text WebFetch-verified 2026-05-17.)

8. HB 211: third-party alcohol delivery (eff. 1/1/2026)

HB 211 (Section 11) creates a third-party alcohol delivery license and renames the Act to the "Responsible Alcohol Sales, Service, and Delivery Act." Required content for delivery training programs:

- (a) Methods to identify and prevent sales to underage or intoxicated persons
- (b) Strategies underage persons use to obtain alcohol
- (c) Acceptable forms of identification and procedures for checking
- (d) Actions to prevent alcohol-related incidents
- (e) Other DOR-adopted requirements

Delivery driver rules (per HB 211 and CARD-implementing rules — confirm specific numbers with CARD before relying on them):

- Driver must be 21+ and hold a valid driver's license. HB 211 imposes background-check standards (e.g., no recent felony or DUI within a defined lookback period) — confirm current criteria with CARD.
- Beer and table wine ONLY (no spirits)
- Delivery hours must fall within the time window allowed by HB 211 and CARD rules (tied to the licensed retailer's sales window; may extend briefly after the retailer's sales cutoff — confirm before relying on a specific minute)

- ID-scanning at delivery (or DOR-approved alternative)
- Refuse delivery to intoxicated recipients or unmarked addresses/PO boxes
- Storage rules apply during transit (alcohol transported separately from the driver's reach)
- Drivers complete required training before their first alcohol delivery. Montana law allows a responsible server and sales training program or a delivery training program; confirm CARD's current delivery-training expectations before relying on a specific program.

CertReady's on-premises and off-premises RASS courses cover the HB 211 delivery overlay at the retailer-side level in Module 07 (on-prem) and Module 06 (off-prem), so off-premises retailers fulfilling alcohol orders through DoorDash, Uber Eats, Instacart, or Grubhub understand their compliance responsibilities. Whether a third-party delivery driver needs a separate delivery-track training program in addition to a general RASS course should be confirmed with CARD.

DOR has 30 business days to approve, deny, or request modifications to a proposed delivery training program submitted by a third-party licensee.

9. Reporting and recordkeeping

Per ARM 42.13.904 (as adopted March 7, 2026 via MAR Notice 2025-292.3 (adopting the amended proposal in MAR Notice 2025-292.2)), CertReady submits training records to Montana CARD electronically within two weeks of each learner's completion via the CARD-approved secure electronic process. Provisional CSV schema and field-by-field detail in [completion-reporting-workflow.md](#) ; final schema pending CARD's published electronic submission specification.

Public verification at svc.mt.gov/dor/liquorserver/public/certsearch.aspx, keyed on last name + DOB.

Provider record retention: 5 years.

10. Sources

Every URL, statute, and admin rule consulted is listed in [research.md](#) . Key citations re-listed here:

- MCA 16-1-106(4); 16-2-101; 16-2-104; 16-3-301(4)(a)-(b); 16-3-301(6); 16-3-304; 16-3-307
- MCA 16-4-301; 16-4-1001 (short title, post-HB 211 rename); 16-4-1002 (special-permit exemption); 16-4-1004; 16-4-1005; 16-4-1006 (HB 157, HB 196); 16-4-1008; 16-4-1009
- MCA 16-6-304 (single-prong "apparently under the influence" standard); 16-6-305 (subsections (1)-(4); no subsection (7) — that change was proposed by 2023 SB 366 and 2025 SB 195, both of which died); 27-1-710 (incl. (6), (8), (10))
- MCA 39-2-306; 45-5-624; 46-18-212 (default misdemeanor penalty)
- MCA 61-8-1002; 61-8-1007 (1st-3rd offense penalties); 61-8-1008 (4th+ offense felony); 61-8-1016; 61-8-1032 (refusal suspension durations + \$300 admin fee)

- ARM 42.13.101; 42.13.901; 42.13.902 (acceptable IDs); 42.13.904 (reporting); 42.13.906 (application process); 42.13.907 (training program content, post-March 7, 2026 amendments)
- HB 157 (2025); HB 196 (2025); HB 211 (2025, renamed Act in MCA 16-4-1001)